Reserved On: 21.07.2025 vs State Of H.P on 30 July, 2025

2025:HHC:25012 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Revision No. 59 of 2013 Reserved on: 21.07.2025 .

Date of Decision :30.7.2025.

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Chaina Ram                                                                ...Pet
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State of H.P.                                                            ...Resp
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Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 Yes For the Petitioner : Mr. Ashish Verma, Advocate.

For the Respondent : Mr. Jitender K. Sharma, Advocate.

Rakesh Kainthla, Judge The present revision is directed against the judgment dated 29.12.2012, passed by learned Additional Sessions Judge-I, Kangra at Dharamshala, District Kangra, H.P. (learned Appellate Court), vide which the judgment of conviction and order of sentence dated 02.05.2008 passed by learned Judicial Magistrate, First Class, Palampur, District Kangra, H.P., (learned Trial Court) were upheld. (Parties shall hereinafter be referred to in the same Whether reporters of Local Papers may be allowed to see the judgment? Yes.

2025:HHC:25012 manner as they were arrayed before the learned Trial Court for convenience.) .

2. Briefly stated, the facts giving rise to the present revision are that the police presented a challan before the learned Trial Court for the commission of offences punishable under Section 279, 337 and 338 of the Indian Penal Code (IPC) and Section 181 of the Motor Vehicles Act (M.V. Act). It was asserted that the informant Subhash Chand (PW-1) and his son Akshay Kumar (PW-2) were going to Beed on 11.03.2003. They were waiting for a bus at the old bus stand in Palampur. A bus bearing registration No. HP53-2713 came to the bus stand.

Akashay Kumar was boarding the bus when the driver suddenly started it. Akshay fell, and his left leg was crushed under the rear tyre of the bus. The accused Chaina Ram was driving the bus.

The accident occurred due to the negligence of the accused, who was attempting to overtake another bus. An intimation was given to the police. The police recorded an entry in the daily diary and sent Onkar Singh (PW-10), Gurbachan and HHC Ram Rattan to the Sub Divisional Hospital, Palampur, to verify its correctness. The informant made a statement (PW-1/A), which was sent to the Police Station, where F.I.R. (Ext.PW-8/A) was 2025:HHC:25012 registered. The photographs of the spot (Ext.PA1 to Ext.PA12) were taken. Onkar Singh (PW-10) conducted the investigation.

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He prepared the site plan (Ext.PW-10/A). He seized the bus along with the documents vide seizure Memo (Ext.PW-6/A).

The mechanical examination of the bus was conducted by Kuldeep Singh (PW-7), who found that there was no mechanical defect in the vehicle which could have led to the accident. He issued his report (Ext.PW-7/A). Dr. Vinay Mahajan (PW-3) conducted the medical examination of Akshay Kumar (PW-2) and found that he had sustained simple and grievous injuries, which could have been caused in a motor vehicle accident. He issued MLC (Ext.PW3/A) and final opinion (Ext.PW-3/B).

Statements of witnesses were recorded as per their version, and after completion of the investigation, the challan was prepared and presented before the learned Trial Court.

3. Learned Trial Court found sufficient reasons to summon the accused, and when the accused appeared, a notice of accusation was put to him for the commission of offences punishable under Sections 279, 337 and 338 of IPC and Section 181 of M.V. Act, to which he pleaded not guilty and claimed to be tried.

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4. The prosecution examined 10 witnesses to prove its case. Subhash Chand (PW-1) is the informant. Akshay Kumar .

(PW-2) is the victim. Dr. Vinay Mahajan (PW-3) conducted the medical examination of the injured Akshay Kumar. Constable Suresh Kumar (PW-4) and Kamlesh Dutt (PW-9) are the eyewitnesses. Surjeet Guleria (PW-5) took the photographs.

Ravinder Kumar (PW-6) is the witness to the recovery of the bus.

Kuldeep Singh (PW-7) conducted the mechanical examination of the bus. HC. Kehar Singh (PW-8) recorded the F.I.R. S.I. Onkar Singh (PW-10) investigated the case.

5. The accused, in his statement recorded under Section 313 of Cr.P.C., admitted that he was driving the bus and that Akshay Kumar had sustained injuries in the motor vehicle accident. He stated that he was innocent and a false case was made against him. He did not produce any defence evidence.

6. Learned Trial Court held that the testimonies of the eyewitnesses corroborated each other. It was duly proved on record that Akshay Kumar was boarding the bus, and the accused suddenly started the bus. Akshay Kumar fell and sustained injuries. His negligence led to the accident. The accused failed to 2025:HHC:25012 produce a driving license. Hence, the accused was convicted and sentenced as under: -

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Offences	Sentences
279 of IPC	Convict was sentenced to undergo rigorous imprisonment for three months and pay a fine of 1000/- and in default of payment of fine to undergo further simple imprisonment for one month.
337 of IPC	Convict was sentenced to undergo rigorous imprisonment for three months and pay a fine of 500/- and in default of payment of fine to undergo further simple imprisonment for fifteen days.
338 of IPC	Convict was sentenced to undergo rigorous imprisonment for six months and pay a fine of 1000/- and in default of payment of fine to undergo further simple imprisonment for one month.
181 of M.V. Act	Convict was sentence to pay a fine of 500/- and default of payment of fine to undergo further simple imprisonment for seven days.

All the sentences were ordered to run concurrently.

7. Being aggrieved by the judgment and order passed by the learned Trial Court, the accused filed an appeal, which was decided by the learned Additional Sessions Judge-I, Kangra at Dharamshala, District Kangra, H.P. (learned Appellate Court).

Learned Appellate Court concurred with the findings recorded by the learned trial Court that Akshay Kumar (PW-2) was trying to board the bus when the accused started it. The accused failed to 2025:HHC:25012 take due care and reasonable precaution, which led to the accident. The accused failed to produce a driving license. Hence, .

he was rightly convicted by the learned Trial Court. The sentence was adequate. No interference was required with it.

Hence, the appeal was dismissed.

8. Being aggrieved and dissatisfied with the judgments and order passed by the learned Courts below, the accused has filed the present revision petition, asserting that the learned Courts below misinterpreted the evidence. The statements of witnesses contradicted each other. Akshay Kumar (PW-2) admitted that he had tried to board a running bus; therefore, he was negligent. The accused had produced a driving license before the learned Appellate Court. However, the learned Appellate Court failed to notice it and wrongly affirmed the conviction of the accused for the commission of an offence punishable under Section 181 of the M.V. Act. Therefore, it was prayed that the present petition be allowed and the judgments and order passed by the learned Courts below be set aside.

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9. I have heard Mr. Ashish Verma, learned counsel for the petitioner/accused and Mr. Jitender Sharma, learned .

Additional Advocate General, for the respondent/State.

10. Mr. Ashish Verma, learned counsel for the petitioner/accused, submitted that the learned Courts below erred in convicting and sentencing the accused. The prosecution evidence proved that Akshay Kumar was trying to board a moving vehicle, and he was negligent. There was no negligence on the part of the accused, hence, he prayed that the present revision be allowed and the judgments and order passed by the learned Courts below be set aside. He submitted in the alternative that the incident occurred in the year 2003, and 22 years have elapsed since the incident; therefore, a lenient view be taken and the sentence of imprisonment awarded by the learned Courts below be set aside.

11. Mr. Jitender Sharma, learned Additional Advocate General for the respondent/State submitted that the accused was driving the bus without a valid driving license, which amounted to negligence. He failed to stop the bus and started it when the passengers were boarding the bus. His negligence led to the 2025:HHC:25012 accident; therefore, he prayed that the present revision petition be dismissed.

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12. I have given considerable thought to the submissions made at the bar and have gone through the records carefully.

13. It was laid down by the Hon'ble Supreme Court in Malkeet Singh Gill v. State of Chhattisgarh, (2022) 8 SCC 204:

> (2022) 3 SCC (Cri) 348: 2022 SCC OnLine SC 786 that the revisional court does not exercise an appellate jurisdiction and it can only rectify the patent defect, errors of jurisdiction or the law. It was observed at page 207: -

> "10. Before adverting to the merits of the contentions, at the outset, it is apt to mention that there are concurrent findings of conviction arrived at by two courts after a detailed appreciation of the material and evidence brought on record. The High Court in criminal revision against conviction is not supposed to exercise the jurisdiction like the appellate court, and the scope of interference in revision is extremely narrow. Section 397 of the Criminal Procedure Code (in short "CrPC") vests jurisdiction to satisfy itself or himself as to the correctness, legality, or propriety of any finding, sentence, or order, recorded or passed, and as to the regularity of any proceedings of such inferior court. The object of the provision is to set right a patent defect or an error of jurisdiction or law. There has to be a well-founded error which is to be determined on the merits of individual cases. It is also well settled that while considering the same, the Revisional Court does not dwell at length upon the facts and evidence of the case to reverse those findings.
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14. This position was reiterated in State of Gujarat v.

Dilipsinh Kishorsinh Rao, (2023) 17 SCC 688: 2023 SCC OnLine SC .

1294, wherein it was observed at page 695:

> 14. The power and jurisdiction of the Higher Court under Section 397CrPC, which vests the court with the power to call for and examine records of an inferior court, is for the purposes of satisfying itself as to the legality and regularities of any proceeding or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law or the perversity which has crept in such proceedings.
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> 15. It would be apposite to refer to the judgment of this Court in Amit Kapoor v. Ramesh Chander [Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460: (2012) 4 SCC (Civ) 687: (2013) 1 SCC (Cri) 986], where scope of Section 397 has been considered and succinctly explained as under: (SCC p. 475, paras 12-13) "12. Section 397 of the Code vests the court with the power to call for and examine the records of an inferior court for the purposes of satisfying itself as to the legality and regularity of any proceedings or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law.

There has to be a well-founded error, and it may not be appropriate for the court to scrutinise the orders, which, upon the face of it, bear a token of careful consideration and appear to be in accordance with law. If one looks into the various judgments of this Court, it emerges that the revisional jurisdiction can be invoked where the decisions under challenge are grossly erroneous, there is no compliance with the provisions of law, the finding recorded is based on no evidence, material evidence is ignored, or judicial discretion is exercised arbitrarily or perversely. These are

not 2025:HHC:25012 exhaustive classes, but are merely indicative. Each case would have to be determined on its own merits.

13. Another well-accepted norm is that the revisional jurisdiction of the higher court is a very limited one and .

cannot be exercised in a routine manner. One of the inbuilt restrictions is that it should not be against an interim or interlocutory order. The Court has to keep in mind that the exercise of revisional jurisdiction itself should not lead to injustice ex facie. Where the Court is dealing with the question as to whether the charge has been framed properly and in accordance with law in a given case, it may be reluctant to interfere in the exercise of its revisional jurisdiction unless the case substantially falls within the categories aforestated. Even framing of charge is a much-advanced stage in the proceedings under CrPC."

16. This Court in the aforesaid judgment in Amit Kapoor case [Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460 :

> (2012) 4 SCC (Civ) 687 : (2013) 1 SCC (Cri) 986] has also laid down principles to be considered for exercise of jurisdiction under Section 397 particularly in the context of prayer for quashing of charge framed under Section 228CrPC is sought for as under : (Amit Kapoor case [Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460 : (2012) 4 SCC (Civ) 687 : (2013) 1 SCC (Cri) 986], SCC pp. 482-83, para 27) "27. Having discussed the scope of jurisdiction under these two provisions, i.e., Section 397 and Section 482 of the Code, and the fine line of jurisdictional distinction, it will now be appropriate for us to enlist the principles with reference to which the courts should exercise such jurisdiction. However, it is not only difficult but inherently impossible to state such principles with precision. At best and upon objective analysis of various judgments of this Court, we are able to cull out some of the principles to be considered for proper exercise of jurisdiction, particularly, with regard to quashing of charge either in exercise of 2025:HHC:25012 jurisdiction under Section 397 or Section 482 of the Code or together, as the case may be:
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> 27.1. Though there are no limits to the powers of the Court under Section 482 of the Code but the more the .

power, the more due care and caution is to be exercised in invoking these powers. The power of quashing criminal proceedings, particularly the charge framed in terms of Section 228 of the Code, should be exercised very sparingly and with circumspection, and that too in the rarest of rare cases.

27.2. The Court should apply the test as to whether the uncontroverted allegations as made from the record of the case and the documents submitted therewith prima facie establish the offence or not. If the allegations are so patently absurd and inherently improbable that no prudent person can ever reach such a conclusion, and where the basic ingredients of a criminal offence are not satisfied, then the Court may interfere. 27.3. The High Court should not unduly interfere. No meticulous

examination of the evidence is needed for considering whether the case would end in conviction or not at the stage of framing of charge or quashing of charge.

*** 27.9. Another very significant caution that the courts have to observe is that it cannot examine the facts, evidence and materials on record to determine whether there is sufficient material on the basis of which the case would end in a conviction; the court is concerned primarily with the allegations taken as a whole whether they will constitute an offence and, if so, is it an abuse of the process of court leading to injustice.

*** 27.13. Quashing of a charge is an exception to the rule of continuous prosecution. Where the offence is even broadly satisfied, the Court should be more inclined to 2025:HHC:25012 permit continuation of prosecution rather than its quashing at that initial stage. The Court is not expected to marshal the records with a view to decide admissibility and reliability of the documents or .

records, but it is an opinion formed prima facie."

17. The revisional court cannot sit as an appellate court and start appreciating the evidence by finding out inconsistencies in the statements of witnesses, and it is not legally permissible. The High Courts ought to be cognizant of the fact that the trial court was dealing with an application for discharge.

15. This position was reiterated in State of Gujarat v.

Dilipsinh Kishorsinh Rao, (2023) 17 SCC 688: 2023 SCC OnLine SC 1294, wherein it was observed at page 695:

> 14. The power and jurisdiction of the Higher Court under Section 397CrPC, which vests the court with the power to call for and examine records of an inferior court, is for the purposes of satisfying itself as to the legality and regularities of any proceeding or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law or the perversity which has crept in such proceedings.
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> 15. It would be apposite to refer to the judgment of this Court in Amit Kapoor v. Ramesh Chander [Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460: (2012) 4 SCC (Civ) 687: (2013) 1 SCC (Cri) 986], where scope of Section 397 has been considered and succinctly explained as under: (SCC p. 475, paras 12-13) "12. Section 397 of the Code vests the court with the power to call for and examine the records of an inferior court for the purposes of satisfying itself as to the legality and regularity of any proceedings or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law.

2025:HHC:25012 There has to be a well-founded error, and it may not be appropriate for the court to scrutinise the orders, which, upon the face of it, bear a token of careful consideration and appear

to be in accordance with law.

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If one looks into the various judgments of this Court, it emerges that the revisional jurisdiction can be invoked where the decisions under challenge are grossly erroneous, there is no compliance with the provisions of law, the finding recorded is based on no evidence, material evidence is ignored, or judicial discretion is exercised arbitrarily or perversely. These are not exhaustive classes, but are merely indicative. Each case would have to be determined on its own merits.

13. Another well-accepted norm is that the revisional jurisdiction of the higher court is a very limited one and cannot be exercised in a routine manner. One of the inbuilt restrictions is that it should not be against an interim or interlocutory order. The Court has to keep in mind that the exercise of revisional jurisdiction itself should not lead to injustice ex facie. Where the Court is dealing with the question as to whether the charge has been framed properly and in accordance with law in a given case, it may be reluctant to interfere in the exercise of its revisional jurisdiction unless the case substantially falls within the categories aforestated. Even framing of charge is a much-advanced stage in the proceedings under CrPC."

16. This Court in the aforesaid judgment in Amit Kapoor case [Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460 :

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only difficult but inherently impossible to state such principles with precision. At best and upon objective analysis of various judgments of this Court, we are able to cull out some of the principles to be considered for proper exercise of jurisdiction, particularly, with regard to quashing of charge either in exercise of jurisdiction under Section 397 or Section 482 of the Code or together, as the case may be:

> 27.1. Though there are no limits to the powers of the Court under Section 482 of the Code but the more the power, the more due care and caution is to be exercised in invoking these powers. The power of quashing criminal proceedings, particularly, the charge framed in terms of Section 228 of the Code, should be exercised very sparingly and with circumspection and that too in the rarest of rare cases.

> 27.2. The Court should apply the test as to whether the uncontroverted allegations as made from the record of the case and the documents submitted therewith prima facie establish the offence or not. If the allegations are so patently absurd and inherently improbable that no prudent person can ever reach such a conclusion, and where the basic ingredients of a criminal offence are not satisfied, then the Court may interfere. 27.3. The High Court should not unduly interfere. No meticulous examination of the evidence is needed for considering whether the case would end in conviction or not at the stage of framing of charge or quashing of charge.
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> *** 27.9. Another very significant caution that the courts have to observe is that it cannot examine the facts, evidence and materials on record to determine whether 2025:HHC:25012 there is sufficient material on the basis of which the case would end in a conviction; the court is concerned primarily with the allegations taken as a whole whether they will constitute an offence and, if so, is it an abuse .

of the process of court leading to injustice.

*** 27.13. Quashing of a charge is an exception to the rule of continuous prosecution. Where the offence is even broadly satisfied, the Court should be more inclined to permit continuation of prosecution rather than its quashing at that initial stage. The Court is not expected to marshal the records with a view to decide admissibility and reliability of the documents or records, but it is an opinion formed prima facie."

17. The revisional court cannot sit as an appellate court and start appreciating the evidence by finding out inconsistencies in the statements of witnesses, and it is not legally permissible. The High Courts ought to be cognizant of the fact that the trial court was dealing with an application for discharge.

16. It was held in Kishan Rao v. Shankargouda, (2018) 8 SCC 165: (2018) 3 SCC (Cri) 544: (2018) 4 SCC (Civ) 37: 2018 SCC OnLine SC 651 that it is impermissible for the High Court to reappreciate the evidence and come to its conclusions in the absence of any perversity. It was observed at page 169:

> "12. This Court has time and again examined the scope of Sections 397/401 CrPC and the grounds for exercising the revisional jurisdiction by the High Court. In State of Kerala v. Puttumana Illath Jathavedan Namboodiri [State of Kerala v. Puttumana Illath Jathavedan Namboodiri, (1999) 2 SCC 452: 1999 SCC (Cri) 275], while considering the scope of the revisional jurisdiction of the High Court, this Court has laid down the following: (SCC pp. 454-55, para 5) 2025:HHC:25012 "5. ... In its revisional jurisdiction, the High Court can call for and examine the record of any proceedings to satisfy itself as to the correctness, legality or propriety of any finding, sentence or order. In other words, the .

jurisdiction is one of supervisory jurisdiction exercised by the High Court for correcting a miscarriage of justice. But the said revisional power cannot be equated with the power of an appellate court, nor can it be treated even as a second appellate jurisdiction. Ordinarily, therefore, it would not be appropriate for the High Court to reappreciate the evidence and come to its conclusion on the same when the evidence has already been appreciated by the Magistrate as well as the Sessions Judge in appeal unless any glaring feature is brought to the notice of the High Court which would otherwise tantamount to a gross miscarriage of justice.

On scrutinising the impugned judgment of the High Court from the aforesaid standpoint, we have no hesitation in concluding that the High Court exceeded its jurisdiction in interfering with the conviction of the respondent by reappreciating the oral evidence. ..."

13. Another judgment which has also been referred to and relied on by the High Court is the judgment of this Court in Sanjaysinh Ramrao Chavan v. Dattatray Gulabrao Phalke [Sanjaysinh Ramrao Chavan v. Dattatray Gulabrao Phalke, (2015) 3 SCC 123: (2015) 2 SCC (Cri) 19]. This Court held that the High Court, in the exercise of revisional jurisdiction, shall not interfere with the order of the Magistrate unless it is perverse or wholly unreasonable or there is non-consideration of any relevant material, the order cannot be set aside merely on the ground that another view is possible. The following has been laid down in para 14: (SCC p. 135) "14. ... Unless the order passed by the Magistrate is perverse or the view taken by the court is wholly unreasonable or there is non-consideration of any relevant material or there is palpable misreading of records, the Revisional Court is not justified in setting 2025:HHC:25012 aside the order, merely because another view is possible. The Revisional Court is not meant to act as an appellate court. The whole purpose of the revisional jurisdiction is to preserve the power of the court to do .

justice in accordance with the principles of criminal jurisprudence. The revisional power of the court under Sections 397 to 401 CrPC is not to be equated with that of an appeal. Unless the finding of the court, whose decision is sought to be revised, is shown to be perverse or untenable in law or is grossly erroneous or glaringly unreasonable or where the decision is based on no material or where the material facts are wholly ignored or where the judicial discretion is exercised arbitrarily or capriciously, the courts may not interfere with the decision in exercise of their revisional jurisdiction."

14. In the above case, the conviction of the accused was also recorded, and the High Court set aside [Dattatray Gulabrao Phalke v. Sanjaysinh Ramrao Chavan, 2013 SCC OnLine Bom 1753] the order of conviction by substituting its view. This Court set aside the High Court's order holding that the High Court exceeded its jurisdiction in substituting its views, and that too without any legal basis.

17. This position was reiterated in Bir Singh v. Mukesh Kumar, (2019) 4 SCC 197: (2019) 2 SCC (Cri) 40: (2019) 2 SCC (Civ) 309: 2019 SCC OnLine SC 13, wherein it was observed at page 205:

> "16. It is well settled that in the exercise of revisional jurisdiction under Section 482 of the Criminal Procedure Code, the High Court does not, in the absence of perversity, upset concurrent factual findings. It is not for the Revisional Court to re-analyse and re-interpret the evidence on record.
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> 17. As held by this Court in Southern Sales & Services v. Sauermilch Design and Handels GmbH [Southern Sales & Services v. Sauermilch Design and Handels GmbH, 2025:HHC:25012 (2008) 14 SCC 457], it is a well-established principle of law that the Revisional Court will not interfere even if a wrong order is passed by a court having jurisdiction, in the absence of a jurisdictional error. The answer to the first .

question is, therefore, in the negative."

18. The present revision has to be decided as per the parameters laid down by the Hon'ble Supreme Court.

19. It was a specific case of the prosecution that Akshay Kumar was boarding the bus when the accused started the bus. It was laid down by the Hon'ble Supreme Court in Mohd. Aynuddin v. State of A.P., (2000) 7 SCC 72, that a person can fall from a moving vehicle due to the accident, negligence of the passenger, or negligent taking off the bus by the driver. A driver can be expected to keep his eyes ahead and possibly on the side. A presumption of negligence cannot be drawn against the driver if the person falls off the moving bus. It was observed:-

> "5. What is the culpable negligence on the part of the bus driver in the above accident? A passenger might fall from a moving vehicle due to one of the following causes: it could be accidental; it could be due to the negligence of the passenger himself; it could be due to the negligent taking-off of the bus by the driver. However, to fasten the liability with the driver for negligent driving in such a situation, there should be evidence that he moved the bus suddenly before the passenger could get into the vehicle or that the driver moved the vehicle even before getting any signal from the rear side.
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> 6. A driver who moves the bus forward can be expected to keep his eyes ahead and possibly on the sides. A driver can take the reverse motion when that driver assures himself that the vehicle can safely be taken backwards.
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> 7. It is a wrong proposition that for any motor accident, negligence of the driver should be presumed. An accident of such a nature as would prima facie show that it cannot be accounted for anything other than the negligence of the driver of the vehicle may create a presumption, and in such a case, the driver has to explain how

the accident happened without negligence on his part. Merely because a passenger fell from the bus while boarding the bus, no presumption of negligence can be drawn against the driver of the bus.

8. The principle of res ipsa loquitur is only a rule of evidence to determine the onus of proof in actions relating to negligence. The said principle has application only when the nature of the accident and the attending circumstances would reasonably lead to the belief that, in the absence of negligence, the accident would not have occurred and that the thing that caused the injury is shown to have been under the management and control of the alleged wrongdoer.

9. A rash act is primarily an overhasty act. It is opposed to a deliberate act. Still, a rash act can be a deliberate act in the sense that it was done without due care and caution.

Culpable rashness lies in running the risk of doing an act with recklessness and indifference as to the consequences. Criminal negligence is the failure to exercise duty with reasonable and proper care and precaution, guarding against injury to the public generally or to any individual in particular. It is the imperative duty of the driver of a vehicle to adopt such reasonable and proper care and precaution.

10. In the present case, the possible explanation of the driver is that he was unaware of even the possibility of the accident which happened. It could be so. When he moved 2025:HHC:25012 the vehicle forward, his focus normally would have been towards what was ahead of the vehicle. He is not expected to move the vehicle forward when passengers are in the process of boarding the vehicle. But when he gets a signal .

from the conductor that the bus can proceed, he is expected to start moving the vehicle. Here, no witness has said, including the conductor, that the driver moved the vehicle before getting a signal to move forward. The evidence in this case is too scanty to fasten him with criminal negligence. Some further evidence is indispensably needed to presume that the passenger fell down due to the negligence of the driver of the bus. Such further evidence is lacking in this case. Therefore, the Court is disabled from concluding that the victim fell down only because of the negligent driving of the bus. The corollary thereof is that the conviction of the appellant of the offence is unsustainable."

20. Subhash Chand (PW-1) stated that the bus conductor was standing at the door when the passengers were trying to board the bus.

The accused started the bus. Akshay Kumar (PW-2) also stated that he was boarding the bus from the front door when the driver started the bus, and he fell. Constable Suresh Kumar (PW-4) stated that one boy, Akshay, was boarding the bus. The driver started the bus, and Akshay fell. Kamlesh

Dutt (PW-9) stated that passengers were boarding the bus. One boy was pushed by the passengers, and he fell. The bus was moving slowly at that time.

21. Thus, it is apparent that no witness has stated that the accused started the bus without getting the signal from the conductor.

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22. Kamlesh Dutt (PW-9) stated that the passenger, Akshay Kumar, was pushed by other passengers. It is admitted .

by all the witnesses that there was a huge rush of passengers at the bus stand. Therefore, the explanation provided by Kamlesh Dutt (PW-9) that Akshay fell because he was pushed by other passengers cannot be ignored.

23. Akshay Kumar (PW-2) admitted in his cross-

examination that many persons were trying to board the bus, and they were pushing each other. He also admitted that the bus had not reached the place from where passengers board the bus.

It was ten feet away from that place. He admitted that the bus was moving and had not come to a halt. He volunteered to say that the bus had stopped. His cross-examination also makes it highly probable that the passengers tried to board a moving bus, and Akshay Kumar was pushed by other passengers.

24. Constable Suresh Kumar (PW-4) stated in his cross-

examination that he was controlling the traffic and his back was towards the bus. He could not say with certainty whether the bus was moving or was stationary. He could not say whether the boy was attempting to board the moving bus and was pushed by the 2025:HHC:25012 passengers. Hence, the cross-examination of this witness also does not show that there was any negligence of the driver.

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25. Subhash Chand (PW-1) admitted that the boy tried to board the bus to get a seat. He denied that the bus was not parked and that Akshay Kumar was attempting to board the moving bus. However, his testimony does not show that the accused was made aware of the fact that Akshay was attempting to board the bus, and the accused moved the bus without getting the signal from the conductor.

26. Learned Courts below proceeded on the basis that since the passenger had fallen, therefore, the accused was negligent, which is not a correct proposition of law. The prosecution was required to prove that the accused had moved the bus without getting the signal from the conductor, and nobody asserted any such fact. Thus, learned Courts below erred in holding that the accused was

negligent in driving the bus.

27. It was submitted that the accused did not have a valid driving license, and driving the bus without a valid driving license itself amounts to negligence. This submission is not acceptable. It was laid down in State Government v.

2025:HHC:25012 Bhawanesh Kumar, 1957 SCC OnLine MP 102, that absence of a driving licence does not constitute rashness or negligence. It .

was observed:

> "15. We are equally clear that from the mere fact that the accused-respondent did not possess a driving licence, it cannot be positively inferred that he was guilty of rashness or negligence in driving a heavy vehicle like a truck. There is evidence of Jabbar (D. W. 1), which shows that the accused is in charge of the Sarodha Head Workshop, and he has been testing and driving motor vehicles for 1½ years. According to him, he is an experienced motor driver, and consequently, there is nothing to show that in undertaking to drive a heavy motor vehicle like a truck, he was undertaking a risk for which there was no justification whatsoever. Whether he drives a vehicle with a licence or without a licence, the law expects him to be neither rash nor negligent in the performance of his task, and we will judge his conduct in the matter as if he were the most qualified driver who brings to his task the ordinary reasonable competency of persons driving heavy motor vehicles."

28. This position was reiterated in Suleman Rehiman Mulani v.

State of Maharashtra, 1967 SCC OnLine SC 337 : (1968) 2 SCR 515: AIR 1968 SC 829, wherein it was observed:

> 12....There is no presumption in law that a person who possesses only a learner's licence or possesses no licence at all does not know driving. For various reasons, not excluding sheer indifference, he might not have taken a regular licence. The prosecution's evidence that Appellant 1 had driven the jeep to various places on the day previous to the occurrence is proof of the fact that he knew driving. There was no basis for the conclusion that it was a sheer stroke of good fortune that he did not meet with any accident on that day.

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14....In the present case, we do not know what was the proximate cause of the accident. We cannot rule out the possibility of the accident having been caused due to the fault of the deceased. The question whether Appellant 1 was proficient in driving a Jeep or .

not does not conclude the issue. His proficiency in driving might furnish a defence, which a learner could not have, but the absence of proficiency did not make him guilty. The only question was whether, in point of fact, he was not competent to drive and his incompetence was the cause of the death of the person concerned.

29. Hence, the accused cannot be held to be negligent merely because he did not possess any driving licence.

30. It was submitted that the accused had a valid driving license, and it was produced before the learned Appellate Court, and the learned Appellate Court failed to take notice of the same. This submission is not correct. No application for additional evidence was filed before the learned Appellate Court. The Memorandum of Appeal does not mention that any valid driving license was annexed to the appeal. The list of documents only mentions the receipt of fine and the copy of the judgment, and not a copy of the driving license; therefore, the submission that the accused had a valid driving which he had produced before the learned Trial Court, is factually incorrect.

31. The accused was the best person to produce the driving licence because he was in possession of the same. He failed to produce a driving license before the learned Trial Court, the learned Appellate 2025:HHC:25012 Court or before this Court. When the accused had failed to produce the driving license, he was rightly convicted of the commission of an .

offence punishable under Section 181 of the M.V. Act for driving the bus without a valid license.

32. Thus, the learned Trial Court erred in holding that the accused was negligent in driving the bus and his negligence led to the accident, causing injuries to Akshay Kumar. Learned Appellate Court also erred in affirming the judgment of conviction and order passed by the learned Trial Court; however, the learned Trial Court had rightly convicted the accused for the commission of an offence punishable under Section 181 of the MV Act.

33. In view of above, the present appeal is partly allowed and judgment of conviction and order of sentence passed by learned Trial Court convicting and sentencing the accused for the commissions of offences punishable under Sections 279, 337, 338 of IPC as affirmed by the learned Appellate Court are ordered to be set aside, whereas, the judgment of the learned Trial Court convicting the accused for the commission of an offence punishable under Section 181 of M.V. Act and sentencing him to pay fine as affirmed by the learned Appellate Court is ordered to be upheld.

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34. In view of the above terms, the present petition stands disposed of, so also the pending miscellaneous application(s), if any .

35. A copy of the judgment, along with records of the learned Courts below, be sent back forthwith.

(Rakesh Kainthla)
Judge

30th July 2025
(Ravinder)

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